Unmanned Aerial System (UAS) Operations

606.1 PURPOSE AND SCOPE

The purpose of this policy is to establish guidelines and protocol for the deployment and use of the small Unmanned Aerial System (UAS) including the retention and/or destruction of media obtained using the UAS in accordance with applicable Federal law, State law, and City of San Mateo regulations. All members of this UAS Program will ensure a culture of safety.

606.1.1 DEFINITIONS

Definitions related to this policy include:

Certificate of Waiver (COW): A document issued by the Federal Aviation Administration (FAA) that grants permission to operate an aircraft or unmanned aircraft system (UAS, or drone) in a way that deviates from standard FAA regulations.

Certificate of Authorization (COA): Issued by the Air Traffic Organization to a public operator for a speci#c unmanned aircraft activity.

Drone as First Responder (DFR): A type of unmanned aircraft operation where unmanned aircraft are strategically deployed from predetermined locations to respond to emergency situations, with the goal to arrive before human first responders. DFR is being rapidly adopted by various emergency services, including law enforcement and firefighting, to enhance response times, to improve situational awareness, and to help de-escalate interactions between law enforcement and the public.

Drone: A common term for small unmanned aircraft

FAA: Federal Aviation Administration

Ground Control Station (GCS): This is the part of the sUAS that the Remote Pilot interacts with to operate the aircraft (a handheld controller, a computer web-browser, etc)

NAS: National Airspace System

Remote Pilot In Command (PIC): A member of the San Mateo Police Department who is trained, certified and authorized to control a UAS during flight.

Part 107: Federal Aviation Administration rules that govern general operating and flight rules in the National Airspace System. These rules also govern operation of small unmanned aircraft system when operated as a public aircraft under a public safety Certificate of Authorization.

Part 91: Federal Aviation Administration rules that govern general operating and flight rules in the National Airspace System. These rules also govern operation of small unmanned aircraft system when operated as a public aircraft under a public safety Certificate of Authorization.

sUA: Small Unmanned Aircraft. This term refers to the unmanned aircraft by aircraft itself not the controller or other associated equipment.

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sUAS: Small Unmanned Aircraft System, this term encompasses the unmanned aircraft, the ground control station, and any other supporting equipment used to conduct flight operations. Small specifically refers to an aircraft that weighs less than 55 pounds.

606.2 POLICY

The UAS may be utilized to enhance the department's mission of protecting lives and property. Any use of the UAS will be in strict accordance with constitutional and privacy rights, FAA regulations, and department policy

606.3 PRIVACY

The use of the UAS potentially involves privacy considerations. Absent a warrant or exigent circumstances, operators and observers shall not intentionally record or transmit images of any location where a person would have a reasonable expectation of privacy (e.g., residence, yard, enclosure).

606.4 USE OF UAS

Only authorized operators who have completed the required training shall be permitted to operate the sUAS for the following purposes:

(a) Responding to any call for service duly logged in a Computer Aided Dispatch (CAD) system in the normal course of business;

(b) Apprehension of criminal offenders, including, but not limited to, locating and apprehending criminal offenders, supporting warrant service, supporting critical incidents such as barricaded suspects, and pursuing fleeing criminal offenders;

(c) Protecting life, limb, and property, including, but not limited to, search and/or rescue, disaster response, terrorism, mass casualty incidents, crime and accident scene documentation and reconstruction, or response to individuals in physical or mental distress;

(d) Support of other government agency activities and functions, including, but not limited to, infrastructure inspections, marketing, emergency management and disaster response, or surveying and mapping.

(e) UAS program readiness activities including, but not limited to, training, certification, evaluation, and maintenance.

Crewmembers will adhere to all Federal Aviation Regulations (Part 107, Part 91, and others), the conditions and limitations of any applicable FAA operational approvals, and any relevant state and local regulations.

606.5 PROHIBITED USE

The UAS shall not be weaponized, nor shall it be used to:

- To conduct random surveillance activities.
- To target a person based solely on actual or perceived characteristics, such as race, ethnicity, national origin, religion, sex, sexual orientation, gender identity or expression, economic status, age, cultural group, or disability.

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- To harass, intimidate, or discriminate against any individual or group.
- To conduct any business other than official City business.

606.6 CALLOUT PROCEDURE

(a) The on-duty supervisor should make a request via dispatch for qualified UAS team members to respond and deploy the UAS.

1. Dispatch will call the UAS Team Supervisor who will coordinate the callout details with team members.
2. If the UAS Team Supervisor is unavailable a supervisor shall call the on-call command staff member to facilitate the response of a UAS flight team member.

(b) The UAS flight team members will handle all UAS operations, notifications and all necessary pre-flight guidelines as specified in the UAS Operations Guidelines.

606.7 EVIDENCE COLLECTION AND RETENTION

Following a non-training or aircraft maintenance UAS operation, the investigating officer or detective shall meet with the UAS operator to collect the UAS digital media storage media containing the video(s). The video(s) recorded by the Fire Department and/or the Police Department will be uploaded into the approved digital evidence management system (DEMS) such as Evidence.com. After uploading the video(s) into the DEMS, the digital media storage will be returned to service after reformatting the media. If uploading the video(s) to the DEMS is unavailable, the digital media storage will be booked into property as physical evidence. The collection and uploading of the video(s) will be documented by the investigating officer or detective.

It is the policy of the Department to maintain recorded media for the minimum two year period prescribed by law. The retention period may be extended if the audio/video recording is known to have evidentiary value or if proscribed by the retention schedule adopted by the City Council.

Unauthorized use, duplication, and/or distribution of UAS videos are prohibited. Personnel shall not make copies of any UAS videos for their personal use and are prohibited from using a recording device such as a personal camera or any secondary video camera to capture UAS videos. All recorded media, images and audio are the property of the San Mateo Police Department and shall not be copied, released or disseminated in any form or manner outside the parameters of this policy without the expressed written consent of the Chief of Police or his/her designee.

Supervisors may only review recorded UAS video files when he or she has a legitimate business purpose. In addition, San Mateo Police personnel shall only review any recorded UAS video files when he or she has a right to know or need to know may review any recorded UAS video files, including under the following circumstances:

(a) For the purpose of completing a criminal investigation and preparing official reports.

(b) To prepare for courtroom testimony or courtroom presentation.

(c) Following a critical incident: with supervisor approval, refer to Officer-Involved Shooting/Great Bodily Injury Incidents policy.

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(d) For potential training purposes.

(e) Departmental request for a UAS video, including requests from the District Attorney's Office or City Attorney's Office, shall be forwarded through standard chains of communication regarding the dissemination of evidence.

606.7.1 NON-DEPARTMENTAL REQUESTS FOR UAS VIDEO

Non-Departmental Requests for a UAS video shall be accepted and processed in accordance with Federal, State, and local laws, and departmental policy (discovery, media inquiries, subpoenas, Public Records Act requests, etc.).

(a) When practical, Department personnel will be advised prior to any release of UAS video under the California Public Records Act (CPRA).

606.7.2 REQUEST FOR DELETION OR ACCIDENTAL RECORDING

(a) In the event of an accidental activation and recording of the UAS camera system, the recording employee may request that the UAS video is deleted by submitting an e-mail request to the UAS Program Manager or Patrol Division Commander with sufficient information to locate the UAS video. The UAS Program Manager or Patrol Division Commander shall review the video, approve or deny the deletion request, and forward to the UAS Program Manager or System Administrator for action if applicable.

(b) Videos made during authorized department training will be viewed and/or retained for training purposes and then may be retained or deleted with the authorization of the UAS Program Manager or Patrol Division Commander.

606.7.3 COPYING PROCEDURES

(a) A copy of the UAS video can be requested in accordance with the provisions of this policy and current department policies.

(b) Property Officers will be responsible for handling evidence request for DVD copies and online sharing of videos produced by the UAS camera system for court and other approved request by the Chief of Police or his/her designee.

606.7.4 VIDEOS AS TRAINING TOOLS

A UAS video may be utilized as a training tool for individuals, specific units, and the department as a whole. A recommendation to utilize a UAS video for such purpose may come from any source outlined below:

(a) A person recommending utilization of a UAS video for training purposes shall submit the recommendation through the chain of command to either the Watch Commander, UAS Program Manager, or Patrol Division Commander.

(b) The Watch Commander, UAS Program Manager or Patrol Division Commander approving the utilization of a UAS video for training will, if not already available, send an email to Property requesting a copy of the video is placed in the UAS Training file on the network drive. This file will hold all approved training videos. Videos may not be moved to other files, copied or sent beyond this file.

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(c) If an involved officer or employee objects to the showing of a UAS video, his/her objection will be submitted to their supervisor to determine if the employee's objections outweigh the training value. The Patrol Division Commander shall review the recommendation and determine how best to utilize the UAS video file considering the identity of the person(s) involved, sensitivity of the incident, and the benefit of utilizing the video versus other means (e.g., departmental policy, Training Bulletin, Officer Safety Bulletin, briefing or other training).

606.8 ROLES AND RESPONSIBILITIES

The roles and responsibilities for UAS Program members are as follows:

(a) Program Manager — a Police Sergeant or Lieutenant who manages the UAS Program and ensures the program operates in accordance with all Federal, State and local laws, and within department policy and guidelines. In addition, the Program Manager will:

1. Maintain all training flight and maintenance records for each operator and observer, as well as individual airframes.
2. Ensure operators and observers stay current with their training and certifications.
3. Maintain contact with the FAA and familiarity with the pertinent FAA regulations.
4. Evaluate airframes based on mission needs.
5. Remain up to date with current UAS case law, best practices, and industry standards.
6. Develop and maintain the UAS Operational Guidelines Manual

(b) Remote Pilot in Command (PIC) —. The PIC will ensure the safe operation of the UAS in accordance with all applicable law and policy.

1. The PIC may reject a flight based on personnel safety or violation of FAA regulations.
2. The PIC shall be responsive to requests and input from the observer in order to accomplish the safe and effective deployment of the UAS.

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